

26NNCV03970 26NNCV03970

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26NNCV03970 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 16

Date: September 18, 2026

Case No: 26NNCV03970 Trial Date: January 19, 2027

Case Name: Fayad v. Sage Glendale II LLC, et al.

MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES

Moving Party: Plaintiff, Emadia Fayad

Responding Party: Defendant, Sage Glendale II, LLC

RELIEF REQUESTED:

An order compelling Defendant Sage Glendale to provide further verified responses to Plaintiff's SROGs, Set One, Nos. 1-77.

An order compelling Defendant Sage Glendale to provide further verified responses and documents responsive to Plaintiff's RFPS, Set One, Nos. 1-87 and 100-112.

CAUSES OF ACTION: from Complaint

1) Elder Abuse [Pursuant to the Elder Adult and Dependent Adult Civil Protection Act – Welfare and Institutions Code §§15600, et seq.]

2) Negligence

SUMMARY OF FACTS:

The Complaint alleges that on May 30, 2024, Emadia Fayad ("Plaintiff") was admitted to Defendants' residential care facility for the elderly suffering from dementia. Plaintiff alleges that during the time she was a resident at the facility, she suffered multiple severe witnessed and unwitnessed and avoidable falls. As a result of the multiple falls, Plaintiff suffered from significant injuries, including a fractured hip which required surgical repair. The Complaint alleges that upon Plaintiff's admission to the facility, Defendants were aware that Plaintiff suffered from dementia, was at risk of falls, and required special care and assistance including 24-hour supervision and monitoring, assistance with ambulation and transferring, and the provision of safety and assistance devices to prevent accidents. The Complaint alleges that notwithstanding this knowledge, Defendants knowingly disregarded this risk and failed to adequately care for, supervise or monitor Plaintiff.

ANALYSIS:

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (CCP, § 2031.310, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

To compel a further response to interrogatories, the movant can show that: (1) the responding party's answer to a particular interrogatory is evasive or incomplete (CCP, § 2030.300, subd. (a)(1)); (2) the responding party's exercise of the option to produce documents in response to an interrogatory was unwarranted or the required specification of those documents was inadequate (CCP, § 2030.300, subd. (a)(2)); and (3) the responding party's objection to an interrogatory is without merit or too general (CCP, § 2030.300, subd. (a)(3); see, e.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 550 [defendant's argument that plaintiff was required to establish good cause or prove merits of underlying claim before propounding interrogatories without merit]).

To request further production, a movant must establish: (1) good cause for the production (CCP, § 2031.310, subd. (b)(1); *Sinaiko*, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete (CCP, § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (CCP, § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (CCP, § 2031.310, subd. (a)(3); *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility. (CCP, § 2031.310, subd. (e).)

In the reply, Plaintiff withdraws the motion as to Special Interrogatory Nos. 3, 5, 8-9, 24, 35, 41, 44-46, and 51. This leaves Special Interrogatories Nos. 1-2, 4, 6-7, 10-24, 26-34, 36-40, 42-43, 47-50, 52-68, and 70-77 at issue.

Plaintiff also withdraws the motion as to Requests for Production No. 37. This leaves Requests for Production Nos. 1-36, 38-87, and 100-112.

The Court notes that the parties have five additional discovery motions on calendar aside from the instant two motions to compel further. The Court reminds counsel that discovery is a self-executing process that is designed to require little or no court intervention. (See *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Given the volume of the parties' discovery disputes, the Court strongly encourages counsel to engage in meaningful meet and confer efforts to narrow the issues before seeking further judicial intervention. "[A] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Id. at p. 1294.)

The motions are CONTINUED to October 23, 2026 at 8:30 am.

RULING:

Plaintiff Emadia Fayad's Motion to Compel Further Responses to Special Interrogatories is CONTINUED to October 23, 2026, at 8:30 am.

Plaintiff Emadia Fayad's Motion to Compel Further Responses to Requests for Production is CONTINUED to October 23, 2026, at 8:30 am.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.